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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN
LAW AND JUSTICE DIVISION

Islamabad, the 6th December, 2021

No. F. 2(1)/2021-Pub.—The following Ordinance promulgated on 3rd December, 2021 by the President is hereby published for general information:—

ORDINANCE NO. XXIX OF 2021

AN

ORDINANCE

to provide for the emergency management of the Pakistan Nursing Council

WHEREAS it is expedient to provide for the emergency management of the Pakistan Nursing Council and to enable it to discharge its functions under the law;

AND WHEREAS the Senate and the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

(1101)

Price: Rs. 6.00

[1745(2021)/Ex. Gaz.].

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Pakistan Nursing Council (Emergency Management) Ordinance, 2021.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) “**Act**” means the Pakistan Nursing Council Act, 1973 (Act No. XXVI of 1973);

(b) “**Administrator**” means the Administrator appointed under section 3 of this Ordinance;

(c) “**Council**” means the Pakistan Nursing Council established under section 3 of the Act;

(d) “**Executive Committee**” means the Executive Committee of the Council constituted under section 9 of the Act;

(e) “**Ex-Officio members of the Council**” means the *Ex-officio* Members of the council appointed under section 3(1) (a) to (e) of the Act;

(f) “**Government of Pakistan**” means the Federal Government;

(g) “**Member**” means the member of the Council;

(h) “**Ordinance**” means this Ordinance;

(i) “**President**” means the President of the Council elected under section 8 of the Act or the Administrator appointed under section 5 of this Ordinance;

(j) “**Vice-President**” means the Vice-President of the Council elected under section 8 of the Act.

3. Appointment of Administrator.—The Director General Health, Government of Pakistan shall act as the Administrator of the Council for a period of one hundred and twenty days from the promulgation of the Ordinance.

4. Powers of the Administrator.—The Administrator shall be vested with and exercise all powers vesting in the President and the Vice-President of the Council and during such period there shall be no person elected or hold office as the President or Vice-President of the Council.

5. **Appointment of Executive Committee.**—The Executive Committee shall be dissolved and shall be reformulated consisting of the *ex-officio* members of the Council as its members for a period of one hundred and twenty days from the promulgation of the Ordinance. The Administrator shall be the President of the Executive Committee.

6. **Powers of the Executive Committee.**—(1) The Executive Committee shall be vested with and exercise all the powers and authority vesting in the Council and during such period no other member of the Council shall exercise any power otherwise vesting in the Council or its members.

(2) The Executive Committee shall arrange random inspection of the selected institutions under section 17 of the Act and proceed in accordance with section 18 of the Act.

7. **Elections of Office Bearers.**—(1) The Administrator shall within a reasonable time verify the status of each elected member of the Council and where necessary require an election to be held of any member under clause (f) to (l) of sub-section (1) of section 3 of the Act.

(2) The Administrator shall after completion of the composition of the Council call for a meeting of the properly constituted Council and cause for an election to be held for the office of President and Vice-President under section 8 of the Act.

(3) The Administrator shall immediately upon the completion of the election of the President and Vice-President of the Council shall cause for an election of the members of the Executive Committee under sub-section (1) of section 9 of the Act.

8. **Audit.**—The Administrator and the Executive Committee shall cause for a financial audit to be undertaken and completed as soon as possible and submit the audit report and a report on the operations and working of the Nursing Council to the Ministry of National Health Services, Regulations and Coordination.

DR. ARIF ALVI,
President.

RAJA NAEEM AKBAR,
Secretary.

5. Appointment of Executive Committee.—The Executive Committee shall be appointed and shall be re-appointed consisting of the following members of the Council as members for a period of one hundred and twenty days from the promulgation of the Ordinance. The Administrator shall be the head of the Executive Committee.

6. Powers of the Executive Committee.—(1) The Executive Committee shall be vested with and exercise all the powers and authority vested in the Council and during such period no other member of the Council shall exercise any power otherwise vesting in the Council or its members.

(2) The Executive Committee shall arrange random inspection of the selected institutions under section 17 of the Act and proceed in accordance with section 18 of the Act.

7. Elections of Office Bearers.—(1) The Administrator shall within a reasonable time verify the status of each elected member of the Council and where necessary require an election to be held of any member under clause (1) of sub-section (1) of section 3 of the Act.

(2) The Administrator shall after completion of the composition of the Council call for a meeting of the properly constituted Council and cause for an election to be held for the office of President and Vice-President under section 8 of the Act.

(3) The Administrator shall immediately upon the completion of the election of the President and Vice-President of the Council call for an election of the members of the Executive Committee under sub-section (1) of section 9 of the Act.

8. Audit.—The Administrator and the Executive Committee shall cause for a financial audit to be undertaken and completed as soon as possible and submit the audit report and a report on the operations and working of the Planning Council to the Ministry of Finance, Health Services, Regulations and Coordination.

DR. ABUL KALAM
President

KALAM NAEEM ARBAK
Secretary